

24PSCV02144 24PSCV02144

County: los-angeles

Division: Civil Law and Motion

Department: H

Hearing date: 2026-07-07

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=EA%20%2CH%2C07%2F07%2F2026

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Case Number: 24PSCV02144 Hearing Date: July 7, 2026 Dept: H

Rreef CPIF 13668

Valley Boulevard, LLC v. SLCC Enterprise, Inc.,

Case No. 24PSCV02144

ORDER ON MOTION

FOR ATTORNEY FEES

Plaintiff Rreef CPIF 13668

Valley Boulevard, LLC's unopposed Motion for Attorney Fees is GRANTED, in the reduced amount of \$49,035.00. The Court awards costs in the amount of \$3,507.26. The total amount of attorney's fees and costs awarded is \$52,542.26.

Background

Plaintiff Rreef CPIF 13668 Valley Boulevard, LLC

("Plaintiff") alleges as follows:

Plaintiff is the owner of the commercial real property located at 13668 Valley Boulevard, Suites B and C1 in the City of Industry ("subject premises"). Plaintiff's predecessor, as landlord, and SLCC Enterprise, Inc. ("Defendant"), as tenant, entered into a written lease agreement dated June 28, 2013 (the "Lease") for Suite B of the subject premises. The Lease was amended twice: the first amendment, dated July 1, 2018, added Suite C1 to the subject property and the second amendment, dated June 29, 2022, extended the Lease term to December 31, 2023. Defendant vacated the subject premises and returned possession on or about January 5, 2024. Defendant owes, and has not paid, holdover and repair damages.

On July 3, 2024, Plaintiff filed a complaint, asserting causes of action against Defendant and Does 1-10 for: (1) Breach of Written Lease and (2) Common Count.

On February 27, 2026, this matter proceeded to a court trial. On March 20, 2026, judgment was entered.

On March 30, 2026, Plaintiff filed (and mail served) a "Notice of Entry of Judgment."

Legal
Standard

"As used in this section, unless the context clearly requires otherwise: . . .

(4)
'Prevailing party' includes the party with a net monetary recovery. . ." (Code Civ. Proc., § 1032, subd. (a)(4).)

"The following items are allowable as costs under Section 1032: . . .

(10)
Attorney's fees, when authorized by any of the following: . . .
(A)
Contract. . ." (Code Civ. Proc., § 1033.5, subd. (a)(10)(A).)

"[I]n any action on a contract, where the contract specifically provides that attorney's fees and costs, which are incurred to enforce that contract, shall be awarded either to one of the parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract, whether he or she is the party specified in the contract or not, shall be entitled to reasonable attorney's fees in addition to other costs..." (Civil Code § 1717(a).)

"The court, upon notice and motion by a party, shall determine who is the party prevailing on the contract for purposes of this section, whether or not the suit proceeds to final judgment. Except as provided in paragraph (2), the party

prevailing on the contract shall be the party who recovered a greater relief in the action on the contract. The court may also determine that there is no party prevailing on the contract for purposes of this section..." (Civil Code § 1717(b)(1).)

Discussion

Plaintiff

moves the Court, pursuant to California Rules of Court Rule 3.1702, Code of Civil Procedure section 1033.5(a)(10)(A) and Civil Code § 1717, for an order awarding Plaintiff attorneys' fees and costs against Defendant in the total amount of \$52,942.26 (i.e., \$45,715.00 in fees through trial, plus \$3,507.26 in costs, plus \$3,720.00 in motion related fees).

1.

Entitlement to Fees

Plaintiff

asserts that it is entitled to attorney's fees and costs pursuant to Paragraph 22.11 of the Standard Industrial Lease Agreement dated June 28, 2013 ("Lease Agreement") entered into between Plaintiff's predecessor in interest, as landlord, and Defendant, as tenant, which reads as follows:

"22.11

Attorneys' Fees If either Landlord or Tenant commences or engages in , or threatens to commence or engage in, an action by or against the other party arising out of or in connection with this Lease or the Premises, including but not limited to any action for recovery of Rent due and unpaid, to recover possession or for damages for breach of this Lease, the prevailing party shall be entitled to have and recover from the losing party reasonable attorneys' fees and other costs incurred in connection with the action, preparation for such action, any appeals relating thereto and enforcing any judgments rendered in connection therewith. If Landlord becomes involved in any action, threatened or actual, by or against anyone not a party to this Lease, but arising by reason of or related to any act or omission of Tenant or Tenant's Parties, Tenant agrees to pay Landlord's reasonable attorneys' fees and other costs incurred in connection with the action, preparation for such action, any appeals relating thereto and enforcing any judgments rendered in connection therewith to the extent awarded by a court of competent jurisdiction."

(Kight

Decl., ¶ 2, Exh. 1, p. 17, ¶ 22.11.)

The

Lease Agreement was amended twice in writing with Plaintiff listed as the landlord, most recently on June 29, 2023. (Id.)

This

case, which was filed on July 3, 2024, proceeded as a breach of lease action for damages outstanding to the real property at issue in this action in excess of the security deposit that was on hand. (Burton Decl., ¶ 8.) The case went to trial on February 27, 2026 and the Court issued its decision in favor of Plaintiff on March 2, 2026. (Id., ¶ 9.) On March 20, 2026, judgment was entered in the amount of \$37,669.56. (Id.)

The Court determines that Plaintiff is the prevailing party and is entitled to seek attorney's fees.

2. Reasonableness of Fees

The Court

turns to the issue of reasonableness of the fees sought. "[T]rial courts have broad discretion in determining the amount of a reasonable attorney's fee award. This determination is necessarily ad hoc and must be resolved on the particular circumstances of each case." (Meister v. Regents of University of California (1998) 67 Cal.App.4th 437, 452.) "Trial judges are entrusted with this discretionary determination because they are in the best position to assess the value of the professional services rendered in their courts." (Christian Research Institute v. Alnor (2008) 165 Cal.App.4th 1315, 1321.)

"[O]nce

a party has established he or she is entitled to fees, the lodestar method is generally presumed to be the starting point in analyzing the appropriate amount of attorney fees. Under this method, a court first calculates the number of hours reasonably spent multiplied by the reasonable hourly rate for each billing professional, and then may adjust the amount based on various relevant factors to ensure the fee reflects the fair market value [of the attorney services] for the particular action. (K.I.

v. Wagner (2014) 225 Cal.App.4th 1412, 1425 [quotations and citations omitted].)

a. Reasonableness of Hourly Rates

“In determining hourly rates, the court must look to the prevailing market rates in the relevant community. The rates of comparable attorneys in the forum district are usually used. In making its calculation, the court should also consider the experience, skill, and reputation of the attorney requesting fees. The court may rely on its own knowledge and familiarity with the legal market in setting a reasonable hourly rate.” (Heritage Pacific Financial, LLC v. Monroy (2013) 215 Cal.App.4th 972, 1009 [internal quotations and citations omitted].)

Attorney Anthony W. Burton’s (“Burton”) hourly rate was initially \$350.00 and increased to \$400.00 as of August 1, 2025. (Burton Decl., ¶ 6.) Paralegal Yuri Gutierrez’s hourly rate is \$225.00. (Id.)

Based on the Court’s own experience and knowledge, the Court finds that the above requested hourly rates are appropriate.

b. Reasonableness of Time Incurred

“[A]n award of attorney fees may be based on counsel’s declarations, without production of detailed time records.” (Raining Data Corp. v. Barrenechea (2009) 175 Cal.App.4th 1363, 1375.) “In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice.” (Premier Medical Management Systems, Inc. v. California Ins. Guarantee Assn. (2008) 163 Cal.App.4th 550, 564.)

Burton sets forth a summary of attorney’s fees incurred in this case through the Notice of Entry of Judgment, which total \$45,715.00. (Burton Decl., ¶ 11.) Burton also provides the Court with a summary of attorney’s fees incurred in connection with this instant motion, which total \$3,720.00. The Court will reduce this amount by one hour, inasmuch as the

estimated one hour time of reviewing any opposition and preparing a reply was not incurred.

The Court will award attorney's fees in the reduced amount of \$49,035.00.

3. Costs

Plaintiff

requests \$3,507.26 in costs. Plaintiff filed a "Memorandum of Costs" on April 1, 2026. Defendant has not filed a motion to strike or to tax costs. The Court will award costs in the amount of \$3,507.26.

Conclusion

The Court

grants the unopposed motion for attorney's fees in the reduced amount of \$49,035.00.

The Court awards costs in the amount of \$3,507.26. The total amount of attorney's fees and costs awarded is \$52,542.26.